



CHAPTER lxvi.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Wemyss and District Water. A.D. 1925.
[31st July 1925.]

WHEREAS His Majesty's Secretary for Scotland has after inquiry held before Commissioners made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Wemyss and District Water Order Confirmation Act 1925. Short title.

A.D. 1925.

SCHEDULE.

WEMYSS AND DISTRICT WATER.

Provisional Order to authorise the Wemyss and District Water Trustees to construct additional waterworks to borrow further money and for other purposes.

WHEREAS by the Wemyss and District Water Order 1910 the Wemyss and District Water Trustees (hereinafter referred to as "the Trustees") were incorporated for the purpose of supplying water within the parish of Wemyss and within so much of the parish of Markinch as was included within the special water supply district of Windygates and Balcurvie and were authorised to acquire lands and to construct the works described in the said Order and to borrow money for the purposes thereof :

And whereas the Trustees' existing waterworks and water supply are inadequate and insufficient to meet the wants and conveniences of the increasing population trade and manufactures within the limits of supply of the Trustees and it is expedient that the Trustees should be empowered to make and maintain the works hereinafter in this Order described and that they should be authorised to borrow money for the construction of those works and the purchase of land and the other purposes of their undertaking to which capital is properly applicable :

And whereas estimates have been prepared by the Trustees for the purchase of the land and servitudes required for the construction and maintenance of the works by this Order authorised and for the execution of those works and such estimates are as follows :—

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Purchase of lands and servitudes	4,000
Reservoir filters and aqueducts	92,000
Trunk conduit	20,000
Subsidiary works	5,000

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And whereas the said works are permanent works and it is expedient that the cost thereof should be spread over a term of years : A.D. 1925
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And whereas plans and sections showing the lines and levels of the works authorised by this Order and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands and other property required or which may be taken for the purposes or under the powers of this Order were duly deposited in the offices at Cupar and Kirkcaldy respectively of the principal sheriff clerk of the county of Fife and are hereinafter respectively referred to as the deposited plans sections and book of reference :

And whereas it is expedient that the further provisions in this Order contained should be enacted :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may be cited for all purposes as the *Wemyss and District Water Order 1925* and may together with the *Wemyss and District Water Order 1910* be cited as the *Wemyss and District Water Orders 1910 and 1925.* Short titles.

2. This Order shall commence and have effect on and from the date of the passing of the Act confirming the same which date is hereinafter referred to as “ the commencement of this Order.” Commence-
ment of
Order.

3. In this Order unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings and the several words and expressions to which meanings are assigned by the Order of 1910 shall so far as applicable and subject to the provisions of this Order have the Interpretation.

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A.D. 1925. — same respective meanings and the following words shall have the meaning hereby assigned to them namely :—

“ The Order of 1910 ” means the Wemyss and District Water Order 1910.

Incorporation of Acts.

4. The following Acts and parts of Acts so far as the same respectively are applicable for the purposes and are not inconsistent with or varied by the provisions of this Order are hereby incorporated with and form part of this Order :—

The Lands Clauses Acts ;

The Commissioners Clauses Act 1847 with the exceptions specified in the Order of 1910 ;

The Waterworks Clauses Act 1847 with the exceptions specified in the Order of 1910 ;

The Waterworks Clauses Act 1863 ;

The sections and provisions of the Railways Clauses Consolidation (Scotland) Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and the crossing of roads and other interference therewith and in construing the said sections and provisions “ the Company ” means the Trustees “ the railway ” means the reservoir and embankment authorised by this Order and the works immediately connected therewith and “ the centre of the railway ” means any part of those works.

This Order shall be deemed a special Act within the meaning of the provisions of the said Acts wholly or partly incorporated herewith.

Power to make works.

5. The Trustees may subject to the provisions of this Order make and maintain in the lines and according to the levels shown on the deposited plans and sections the additional waterworks hereinafter described The waterworks hereinbefore referred to and authorised by this Order are :—

- (1) An intake weir (Work No. 1) wholly situate in the parish of Kennoway and county of Fife on the Mildeans Burn at a point two hundred and fifty-seven yards or thereby measured in a southerly direction from the northern corner

of enclosure numbered 62 on the $\frac{1}{2500}$ Ordnance Survey map (edition of 1914) : A.D. 1925. —

- (2) A catchwater aqueduct conduit or line of pipes (Work No. 2) wholly situate in the parish of Kennoway and county of Fife commencing at the intake weir (Work No. 1) hereinbefore described and terminating in the reservoir (Work No. 4) hereinafter described at a point forty yards or thereby measured in a southerly direction from the commencement of the embankment (Work No. 3) hereinafter described :
- (3) An embankment (Work No. 3) wholly situate in the parish of Kennoway and county of Fife commencing on the boundary between the enclosures numbered 37 and 45 on the $\frac{1}{2500}$ Ordnance Survey map (edition of 1914) at a point one hundred and seven yards or thereby from the eastern end of the said boundary extending therefrom two hundred and thirty yards or thereby in a westerly direction thence two hundred and eighty yards or thereby in a southerly direction and thence one hundred and thirty yards or thereby in a south-easterly direction and terminating on the boundary between enclosures numbered 36 and 39 on the $\frac{1}{2500}$ Ordnance Survey map (edition of 1914) at a point one hundred and sixty yards or thereby from the northern end of the said boundary :
- (4) A reservoir (Work No. 4) wholly situate in the parish of Kennoway and county of Fife commencing in enclosure numbered 67 on the $\frac{1}{2500}$ Ordnance Survey map (edition of 1914) at a point on the continuation of the boundary between enclosures numbered 36 and 37 on the $\frac{1}{2500}$ Ordnance Survey map (edition of 1914) and ten yards or thereby measured in an easterly direction from the eastern termination of the said boundary and terminating at the embankment (Work No. 3) hereinbefore described :
- (5) An aqueduct or by-wash channel (Work No. 5) wholly situate in the parish of Kennoway and county of Fife commencing on the catchwater

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aqueduct conduit or line of pipes (Work No. 2) hereinbefore described at a point ninety yards or thereby from the termination of the said catchwater aqueduct conduit or line of pipes and terminating in the waste channel from the reservoir belonging to the Trustees known as the Carriston Reservoir at a point seventeen yards or thereby below the waste weir of the said Carriston Reservoir :

- (6) Filters (Work No. 6) wholly situate in the parish of Kennoway and county of Fife in the enclosure numbered 39 on the $\frac{1}{2500}$ Ordnance Survey map (edition of 1914) :
- (7) A conduit or line of pipes (Work No. 7) situate partly in the parish of Kennoway and partly in the parish of Markinch both in the county of Fife commencing in the parish of Kennoway at the filters (Work No. 6) hereinbefore described and terminating in the parish of Markinch on the old public road between Cupar and Kirkcaldy at a point forty yards or thereby measured in a south-westerly direction from the centre of the bridge over the River Leven described on the $\frac{1}{2500}$ Ordnance Survey map (edition of 1914) as Cameron Bridge.

Power to
make sub
sidiary
works.

6. In addition to the waterworks by this Order authorised and in connection therewith the Trustees may upon or in the lands delineated on the deposited plans and described in the deposited book of reference make erect and maintain all such embankments dams weirs intake weirs by-wash channels bridges roads accesses approaches wells tanks gauges filters filter beds sluices outlets drains aqueducts culverts channels cuts mains pipes engines machinery buildings telegraphs telephones posts wires and other works and conveniences as may be necessary or convenient in connection with or subsidiary to the said waterworks or any of them but nothing in this section shall exonerate the Trustees from any action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them . Provided that any telegraphs telephones posts wires and other works made erected or maintained by the Trustees shall not be used in contravention of

the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869. A.D. 1925
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7. The Trustees may in constructing the works by this Order authorised deviate laterally from the lines and position thereof as shown on the deposited plans to the extent of the limits of lateral deviation shown thereon and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and the Trustees may also deviate vertically from the levels of the various works as shown on the deposited sections to any extent not exceeding five feet upwards and to any extent downwards Provided that except for the purposes of crossing over a stream no part of any pipe shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections Provided also that the Trustees shall not construct any embankment or retaining wall of any reservoir of a greater height above the general surface of the ground than that shown on the deposited sections in the case of the corresponding embankment or wall and five feet in addition. Power to deviate.

8. For the purposes and during the execution of the several works which the Trustees are by this Order authorised to make and in maintaining the same and subject to the provisions of this Order the Trustees may temporarily from time to time break up or cross over or under alter or stop up any streets highways roads lanes paths bridges passages sewers drains watercourses and water pipes and electric or telephonic apparatus in any of the lands shown on the deposited plans and specified in the deposited book of reference which they may from time to time find it expedient for any of those purposes so to interfere with providing when possible a proper temporary substitute before interrupting the traffic on any such street highway road lane path bridge or passage or the flow of water sewage or electricity or telephonic communication in any such sewer drain watercourse pipe or apparatus and making full compensation to all persons injuriously affected thereby Provided that nothing in this section shall extend to authorise any interference with any telegraphic line (as defined by the Telegraph Act 1878) or other property of His Majesty's Postmaster-General Provided also that nothing in this section shall extend to or Power to open roads &c.

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A.D. 1925. — authorise any interference with any works of any undertakers within the meaning of the Electricity (Supply) Acts 1882 to 1922 otherwise than in accordance with the provisions of section 15 of the Electric Lighting Act 1882. Provided further that nothing in this section shall extend to the works by this Order authorised the provisions of section 56 (For protection of county authorities) and section 58 (For protection of Wemyss &c. Joint Waterworks Undertaking) of the Fife Electric Power Act 1903 so far as the same relate to the Trustees or the Water Undertaking.

For protection of John Lawson of Carriston.

9. For the protection of John Lawson of Carriston (who and his successors in the fields belonging to him hereinafter in this section mentioned are hereinafter in this section referred to as "the owner") the following provisions shall unless otherwise agreed in writing between the owner and the Trustees apply and have effect (that is to say) :—

(1) In respect that the owner has been in use to water bestial in the two most easterly fields forming part of the estate of Carriston from the water in the Mildeans Burn (which burn bounds the said fields on the east) the Trustees shall at their sole expense and simultaneously with the construction of the intake weir (Work No. 1) by this Order authorised furnish each of the said fields with a good and sufficient water trough and shall if and so long as the Trustees abstract water from the Mildeans Burn by means of the works by this Order authorised supply water to the said troughs by means of a pipe or pipes leading from the said intake weir or such other point as the Trustees may determine to the said troughs and the Trustees shall in all time coming and so long as they abstract water from the said burn as aforesaid maintain the said troughs pipes and water supply for the said purpose :

(2) No payment shall be exigible from the owner in respect of the said supply of water and the Trustees shall be bound if necessary to renew the said troughs and pipes and to do everything in their power to secure to the owner a sufficient supply of water free of any charge or expense

for the purpose stated in subsection (1) of this section : A.D. 1925.

- (3) The owner shall free of any charge or expense to the Trustees give to the Trustees all such facilities for the construction and maintenance of the troughs in this section mentioned as the Trustees may require and the owner shall also free of any charge or expense to the Trustees grant to the Trustees such servitudes rights or privileges in over or affecting the fields hereinbefore in this section referred to as may be required for the purpose of enabling the Trustees to construct and thereafter maintain the pipe or pipes hereinbefore in this section mentioned :
- (4) Any question or difference between the owner and the Trustees arising under this section shall be determined by an arbiter to be agreed upon between the owner and the Trustees or failing agreement to be nominated by the sheriff on the application of either party.

10. The provisions of section 42 (For protection of North British Railway Company) of the Order of 1910 shall extend and apply mutatis mutandis to the London and North Eastern Railway Company and to the additional waterworks by this Order authorised.

For protection of London and North Eastern Railway Company.

11. In the execution of the works and the exercise of the powers by this Order authorised and conferred the following provisions for the protection of the Kirkcaldy District Committee of the County Council of the County of Fife (hereinafter in this section called "the district committee") shall (except so far as otherwise agreed to in writing between the Trustees and the district committee) have effect (that is to say) :—

For protection of Kirkcaldy District Committee.

- (1) All aqueducts conduits or lines of pipes or other works to be laid in or along any county highway or in upon or across any county bridge shall so far as practicable be laid in such position in or at the side thereof as the district committee in writing under the hand of their surveyor for the district may reasonably direct and all works and operations to be executed by the Trustees shall be so executed at their risk and they shall maintain the tracks thereof for at

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least twelve months after the completion of the works :

- (2) The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes shall extend and apply to all county highways and county bridges opened and broken up or interfered with by the Trustees in the execution of the works and the exercise of the powers of this Order Provided that the notice required by section 30 of that Act shall not be less than seven days instead of three days :
- (3) The plan required by section 31 of the last-mentioned Act shall be accompanied by a section of the proposed works and a short specification thereof and shall be delivered to the district committee or their surveyor for the district by the Trustees not less than in the case of a county bridge one month and in all other cases fourteen days before they commence to break or open up any county highway or interfere with any county bridge for the purpose of executing the works :
- (4) No greater length than one hundred and fifty yards of any county highway shall be broken up at any one place at one time without the consent of the district committee A clear and sufficient carriageway shall be kept for the passage of carriages and traffic along every county highway and county bridge during any interference therewith by the Trustees unless where by arrangement with the district committee a county highway or county bridge may be shut up and in case of default in compliance with this provision the district committee may by their own servants and workmen clear any such carriageway and may recover the expenses of and incident thereto from the Trustees :
- (5) Nothing in this Order shall authorise the Trustees to interfere with the structural part of any county bridge or culvert without the consent in writing of the road surveyor for the Kirkcaldy district which consent shall not be unreasonably withheld and may be given upon such

conditions as the district committee or the said surveyor may reasonably determine. Provided that the district committee shall be deemed to have given such consent required under this subsection and under subsection (1) of this section if within one month after plans have been submitted to the said surveyor he shall not have given written notice to the Trustees objecting thereto : A.D. 1925.
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- (6) Nothing in this Order contained shall interfere with the right of the district committee to alter the level of or divert or improve in any manner they think fit any county highway in or along which any aqueduct conduit or line of pipes of the Trustees shall have been laid and the Trustees shall forthwith on receiving notice in writing under the hand of the clerk or surveyor of the district committee alter the position of any such aqueduct conduit or line of pipes in the manner and to the extent prescribed by such notice or as in the case of difference shall be determined by arbitration in the manner hereinafter prescribed :
- (7) Nothing in this Order contained shall interfere with the right of the district committee at any time or times to remove alter or rebuild any county bridge or the approaches thereto or culvert over near or attached to which any aqueduct conduit or line of pipes of the Trustees is carried in the same manner as they might have removed altered or rebuilt any such bridge or the approaches thereto or culvert if this Order had not been confirmed and such aqueduct conduit or line of pipes had not been constructed or laid over or near or attached to such bridge or culvert and in the event of any such bridge or the approaches thereto or culvert over or near or attached to which any such aqueduct conduit or line of pipes is laid being removed altered or rebuilt as aforesaid the Trustees shall at the joint cost of the Trustees and of the district committee alter the position of such aqueduct conduit or line of pipes and any works by which such aqueduct

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conduit or line of pipes is carried over or near or attached to such bridge or the approaches thereto or culvert as aforesaid. Provided that during the removal alteration or rebuilding of such bridge or the approaches thereto or culvert as aforesaid the district committee shall afford all reasonable facilities for temporarily carrying such aqueduct conduit or line of pipes across or along any road or stream or river so as not to interrupt the continuous supply of water or to diminish the pressure of such supply through such aqueduct conduit or line of pipes :

- (8) The Trustees shall construct and maintain in connection with the aqueducts conduits or lines of pipes by this Order authorised crossing or passing along any highway or road hydrants or other suitable apparatus or appliances for taking water from the said pipes which shall be placed along and at the side of such highways or roads at intervals of not less than one mile or at such places not more numerous as shall be arranged between the Trustees and the district committee and the district committee shall be entitled to the use of the same and to take water thereby free of charge up to but not exceeding twenty thousand gallons yearly through their servants and workmen for the purpose of their road engines and the renewal maintenance and repair of highways and roads and bridges and for watering the same and the extinguishing of fires but the water shall not be so taken or used for any other purpose unless otherwise agreed upon as aforesaid. The district committee shall pay to the Trustees for a supply of water exceeding twenty thousand gallons yearly such rates as may be agreed upon or failing agreement may be fixed by arbitration as hereinafter provided :
- (9) All works shall be so executed by the Trustees as not to stop the traffic and so far as reasonably practicable not in any way to impede or interfere with the traffic on any highway or over any county bridge or the approaches thereto :

(10) The district committee shall not be liable for or in respect of any damage or injury done to any work of the Trustees by reason of such work being laid at a depth below the surface of any highway insufficient for its protection from injury arising from the reasonable use of any steam or other roller or traction engine for the repair of such county highway or from the passage of the traffic in such highway or in repairing any county bridge or the approaches thereto or culvert : A.D. 1925.
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(11) For the purposes of section 57 of the Roads and Bridges (Scotland) Act 1878 the Trustees shall be deemed to be the person by whose order any excessive weight shall have been passed or any extraordinary traffic conducted on the county highways in connection with the execution of the works by this Order authorised. The Trustees shall make payment to the district committee for and in respect of the carriage or haulage over any highway situate within the district of the district committee of materials to be used by the Trustees in the construction of the works or any of them by this Order authorised or in the reconstruction or duplication thereof of three-pence per ton for each mile for and in respect of such materials so carried or hauled by traction engine or motor haulage and of two-pence per ton for each mile for and in respect of such materials so carried or hauled in carts. Provided that the Trustees shall be bound to relieve the district committee of all claims for damages attributable to any operations of the Trustees under this subsection :

(12) If any difference arises between the district committee and the Trustees touching this section or anything to be done or not to be done thereunder such difference shall failing agreement be referred to the decision of an arbiter to be named (failing agreement of the parties to name an arbiter) by the sheriff on the application of either party and the decision of such arbiter shall be final.

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Power to
take waters.

12. The Trustees may by means of the works by this Order authorised or some of them or some part or parts thereof divert impound take appropriate store use and distribute the waters of the stream called Mildeans Burn and all affluents streams springs and waters flowing into or arising within the said stream and the Trustees may from the works authorised by this Order and the existing waterworks of the Trustees or some of them or some part or parts thereof supply water to such persons and within such limits as the Trustees are by the Order of 1910 authorised and empowered to supply water.

Saving of
provisions
as to com-
pensation
water.

13. Nothing in this Order contained shall prejudice or affect the provisions relating to compensation water of the Provisional Order dated the fifteenth day of May one thousand eight hundred and seventy-six and confirmed by the Public Health (Scotland) Act 1867 Order Confirmation (Wemyss) Act 1876.

Power to
take lands.

14. Subject to the provisions of this Order the Trustees may purchase acquire hold enter upon appropriate take and use such of the lands shown on the deposited plans and described in the deposited book of reference as may be required for the purposes of the works by this Order authorised.

Owners may
be required
to sell parts
only of
certain pro-
perties.

15. And whereas in the construction of the works by this Order authorised or otherwise in exercise of the powers of this Order it may happen that portions only of the lands houses or other buildings or manufactories shown on the deposited plans may be sufficient for the purposes of the same and that such portions may be severed from the remainder of the said properties without material detriment thereto Therefore notwithstanding section 90 of the Lands Clauses Consolidation (Scotland) Act 1845 the owners of and other persons interested in the lands houses or other buildings or manufactories described in the Schedule to this Order and whereof portions only are required for the purposes of this Order may (if such portions can in the opinion of the tribunal to whom the question of disputed compensation shall be submitted (hereinafter in this section referred to as "the tribunal") be severed from the remainder of such properties without material detriment thereto) be required to sell and convey to the Trustees the portions only of the premises so required without

the Trustees being obliged or compellable to purchase the whole or any greater portion thereof the Trustees paying for the portions taken by them and making compensation for any damage sustained by the owners thereof and other parties interested therein by severance or otherwise. Provided that if in any case in the opinion of the tribunal any such portion cannot be severed from the remainder of such property without material detriment thereto the Trustees may at any time within one month after the date of the final decision of the tribunal withdraw their notice to treat for the portion required by them and thereupon they shall pay to the owner of and other parties interested in the property in respect of which or of any portion of which they have given notice to treat all loss and damages sustained and all costs charges and expenses reasonably incurred by them in consequence of such notice. Provided also that nothing in this section contained shall be held as determining whether the properties described in the said Schedule are or are not subject to the provisions of section 90 of the Lands Clauses Consolidation (Scotland) Act 1845 and every such notice to sell and convey lands shall be endorsed with notice of the provisions of this section.

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16.—(1) The Trustees may in lieu of acquiring any lands for the purposes of the works authorised by this Order where the same are intended to be constructed underground acquire such servitudes only in such lands as they may require for such purposes and may give notice to treat in respect of such servitudes describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such servitudes as fully as if the same were lands within the meaning of those Acts.

Trustees
may acquire
servitudes
only in cer-
tain cases.

(2) As regards any lands in respect of which the Trustees have acquired servitudes only under the provisions of this section the Trustees shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such servitudes have the same rights to use and cultivate the said lands at all times as if this Order had not been confirmed.

(3) Provided always that nothing in this section contained shall authorise the Trustees to acquire by

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A.D. 1925. — compulsion any such servitude in any case in which the owner in his particulars of claim shall require the Trustees to acquire the lands in respect of which they have given notice to treat for the acquisition of a servitude only and every notice to treat for the acquisition of a servitude shall be endorsed with notice of this provision.

Period for compulsory purchase of lands.

17. The powers of the Trustees for the compulsory purchase of lands for the works authorised by this Order shall cease after the expiration of three years from the commencement of this Order.

Period for completion of works.

18. If the works authorised to be constructed by this Order are not completed within seven years from the commencement of this Order then on the expiration of that period the powers by this Order granted to the Trustees for executing any works not so completed or in relation thereto shall cease except as to so much thereof as is then completed but nothing herein contained shall restrict the Trustees from maintaining using extending enlarging altering replacing relaying increasing adding to or removing any of their works (other than reservoirs) filters conduits aqueducts mains or pipes at any time and from time to time as occasion requires for the purpose of supplying water under the Order of 1910 or this Order.

Application of certain provisions of Order of 1910.

19. Subject to the provisions of this Order the sections of the Order of 1910 hereinafter mentioned shall so far as the same are not inconsistent with the provisions of this Order extend and apply mutatis mutandis to the works authorised by this Order and to the lands which the Trustees are by this Order authorised to acquire and the powers conferred by those sections may be exercised by the Trustees with reference to such works and to such lands accordingly :—

Section 35 (Trustees may enlarge or increase number of pipes);

Section 36 (Laying mains on public roads);

Section 49 (Power to agree for servitudes &c.);

Section 53 (For protection of reservoirs &c. from pollution);

Section 54 (Reservation of water rights on sale);

Section 55 (Power to agree as to drainage of lands); A.D. 1925.

Section 56 (Byelaws for preventing pollution of water);

Section 58 (Power to acquire and hold lands for prevention of pollution);

Section 59 (Power to discharge water temporarily into streams).

20. The Trustees and the owner lessee or occupier of any fishing shooting sporting boating or other rights in over or on any of the reservoirs of the Trustees or over any adjoining lands belonging to the Trustees may enter into and carry into effect agreements for the acquisition by the Trustees of any such rights and on the acquisition by the Trustees of any such rights the same shall vest in and may be exercised by the Trustees. Purchase of sporting and other rights.

21. Section 52 (Limiting powers of Trustees to abstract water) of the Order of 1910 shall be and the same is hereby repealed and in lieu thereof the following provisions shall apply and have effect (that is to say):— Limiting powers of Trustees to abstract water.

“The Trustees shall not construct any works for
 “ taking or intercepting water from any lands
 “ acquired by them unless the works are autho-
 “ rised by and the lands upon which the same are
 “ to be constructed are specified in the Order of
 “ 1910 or in this Order or some other Order
 “ confirmed by or having the effect of an Act of
 “ Parliament or in some Act of Parliament.”

22. The annual estimate required to be made under and for the purposes of the Order of 1910 shall also include the annual sums required to be provided for the purposes of this Order and the payment of the interest on money which may be borrowed or raised under the powers of this Order and the payments to the sinking fund and all other annual sums required to be provided and the expenses of maintaining and managing the waterworks and water supply authorised by this Order and all other annual expenditure arising out of the exercise of the powers by this Order conferred or consequent on the construction maintenance and use of the works so authorised. Annual estimate &c. to include purposes of this Order.

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Power to
apply capi-
tal already
authorised.

23. The Trustees may apply to any of the purposes of this Order to which capital is properly applicable any funds which under the Order of 1910 belong to the Trustees and which may not be required for the purposes for or to which the same were authorised to be raised or directed to be applied.

Additional
borrowing
powers.

24. In addition to any money which the Trustees have borrowed under the Order of 1910 the Trustees may from time to time borrow by way of mortgage or otherwise any sums not exceeding the following sums namely :—

- (a) For the purchase of lands and servitudes by this Order authorised the sum of four thousand pounds :
- (b) For the construction of Works Nos. 1 to 6 (both inclusive) by this Order authorised the sum of ninety-two thousand pounds :
- (c) For the construction of Work No. 7 by this Order authorised the sum of twenty thousand pounds :
- (d) For subsidiary works the sum of five thousand pounds :
- (e) For paying the costs charges and expenses of and in relation to this Order and the confirmation of the same such sum as may be necessary for that purpose :
- (f) For the purposes of the undertaking of the Trustees with the consent of the Secretary for Scotland but not otherwise such further moneys as the Trustees may require and the Secretary for Scotland shall have and may exercise in relation to such consent as aforesaid all the powers of section 93 of the Local Government (Scotland) Act 1889.

Application
of provisions
of Order of
1910 as to
borrowing
&c.

25. The provisions as to security repayment of borrowed moneys reborrowing borrowing on cash account borrowing for current expenses sinking fund mortgages appointment of a judicial factor and the other provisions contained in the Order of 1910 with reference to the sum therein authorised to be borrowed shall apply to the additional money authorised to be borrowed under this Order Provided always that the prescribed periods

for repayment of any money to be borrowed under this Order shall be as follows (that is to say):— A.D. 1925.
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- (1) As to moneys borrowed for the purchase of lands and servitudes by this Order authorised within sixty years from the date or dates of borrowing the same :
- (2) As to moneys borrowed for the construction of Works Nos. 1 to 6 (both inclusive) by this Order authorised within fifty years from the date or dates of borrowing the same :
- (3) As to moneys borrowed for the construction of Work No. 7 and the subsidiary works by this Order authorised within forty years from the date or dates of borrowing the same :
- (4) As to moneys borrowed for the purpose of paying the costs charges and expenses of this Order as aforesaid within five years from the commencement of this Order :
- (5) As to moneys borrowed with the approval of the Secretary for Scotland within such period and by such method as the Secretary for Scotland may prescribe.

26. The sums borrowed by the Trustees on mortgage or cash account or otherwise under the authority of this Order except any sums borrowed for current expenses shall be applied only to purposes to which capital is properly applicable. Application of moneys borrowed.

27. Nothing in this Order shall prejudice or affect the priority or other rights or remedies under any mortgages or securities or obligations granted by the Trustees before the commencement of this Order and then subsisting. Reservation of prior mortgages.

28. No person lending money to the Trustees shall be bound to inquire as to the observance by the Trustees of any provision of this Order or be bound to see to the application or be answerable for any loss or non-application of any such money or any part thereof. Protection of lender from inquiry.

29. Subject to the provisions of this Order the works by this Order authorised and the lands acquired under this Order shall form part of the water undertaking. Works to form part of water undertaking of Trustees.

[Ch. lxvi.] *Wemyss and District* [15 & 16 GEO. 5.]
Water Order Confirmation Act, 1925.

A.D. 1925.

Costs of
Order.

30. All costs charges and expenses of and incidental to the preparing for obtaining and confirming this Order or otherwise in relation thereto shall be paid by the Trustees and may be paid in the first instance out of any moneys received by them or any rates and assessments which they are authorised to levy or may be ultimately paid by them out of money borrowed for that purpose.

The SCHEDULE referred to in the foregoing Order.

(Referred to in the section of this Order of which the marginal note is "Owners may be required to sell parts only of certain properties.")

PROPERTIES OF WHICH PORTIONS ONLY MAY BE
TAKEN WITHOUT TAKING THE WHOLE.

Parish.	Numbers on deposited plans.
Kennoway	27 57 65 66 67 69 84 and 85.

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